

Vandana Srivastava v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 9 May 2017 · 2017 SCC OnLine All 3976 · C.M.W.P. No. 13816 of 2017 · **Writ petition dismissed for suppression of material facts**

HEADNOTE

A petitioner seeking a new electricity connection to a shop on the strength of a claimed tenancy — where the tenancy is disputed and the subject of civil litigation — must approach the writ court with clean hands. Here the trial court had, at the interim stage, recorded a categorical finding that the petitioner failed to establish even a prima facie case of tenancy and had rejected her temporary-injunction application; that order and finding, being material to the grievance (particularly to any interim relief on the connection), were suppressed in the writ petition. The writ court will not interfere for a petitioner who has not come with clean hands; the petition was dismissed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Clean hands required; concealment of an adverse civil finding on tenancy bars writ relief

QUESTION

Can a claimed tenant obtain a mandamus for a new connection while suppressing a trial court's finding that she failed to establish tenancy even prima facie?

HOLDING

No. Although the distribution licensee was not a party to the suit and no connection relief was sought there, the trial court's finding on the petitioner's status as tenant is relevant to the writ grievance, at least for interim relief. Suppression of that material fact means the petitioner did not approach the Court with clean hands, and the writ court will not interfere; the petition is dismissed. ¶ 9-12

LIMITING FACTS

Connection sought on an indemnity bond for a shop; premises subject to a pending civil suit; temporary-injunction application rejected on 6.3.2017 with a finding of no prima facie tenancy, filed 20 days before the writ and not disclosed in it.

PRINCIPLE TAGS

clean-hands-required-material-concealment-bars-writ Suppression of a material fact — here an adverse civil-court finding on the petitioner's tenancy relevant to the connection claim — disentitles the petitioner to discretionary writ relief. ¶ 10-12

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE PETITIONER'S ENTITLEMENT TO A CONNECTION ON THE MERITS

Not decided; the writ was dismissed on the threshold ground of unclean hands / suppression, without adjudicating the tenancy or the connection entitlement. ¶ 12